

Tentative Rulings for September 22, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2502853	J & Q LAND DEVELOPMENT CONSTRUCTION, INC. VS PROJECT X DEVELOPER, INC.	CROSS-DEFENDANT JAY ALAN SU'S JOINDER TO DEFENDANT AND CROSS-DEFENDANT PROJECT X DEVELOPER INC.'S MOTION TO STAY PROCEEDINGS AND TO COMPEL ARBITRATION

Tentative Ruling: Golden Star's allegations against Jay Alan Su are subject to the same arbitration provision. Golden Star pleads its claims against Jay Alan Su and Project X Developer, Inc. as one controversy. The Cross-Complaint defines them collectively as the "PX Cross-Defendants," alleges that Project X is Su's alter ego, and attributes the same alleged promises, receipt of payments, project conduct, and resulting liability to both.

Those allegations bring the claims against Su within settled non-signatory-enforcement principles. For example, in *Rowe v. Exline* (2007) 153 Cal.App.4th 1276, 1284-1285, the Court of Appeal held that individuals sued as alter egos of a signatory corporation could enforce the corporation's arbitration agreement. Having alleged that Jay Alan Su and Project X Developer, Inc. are legally indistinguishable for purposes of liability, Golden Star cannot treat them as strangers for purposes of enforcing the arbitration provision.

Equitable estoppel leads to the same result. A signatory may be required to arbitrate claims against a non-signatory when those claims rely on, presume the existence of, or are intertwined with the contract containing the arbitration provision. (*Boucher v. Alliance Title Co., Inc.* (2005) 28 127 Cal.App.4th 262, 269-272; *Rowe, supra*, 153 Cal.App.4th at pp. 1287-1290.) Every claim against Su arises from the duties, payments, work, and alleged breaches governed by the construction contract.

Golden Star does not address the application of *Rowe* or equitable estoppel to the allegations it elected to plead. Its sole response is that no arbitration agreement exists. Because the executed A101 establishes Golden Star's agreement to arbitrate, that premise fails.

There is no third party exception under CCP § 1281.2(c):

Although J & Q's affirmative complaint has been dismissed, J & Q remains a cross-defendant to Golden Star's Cross-Complaint. J & Q's continued presence, however, does not itself permit the Court to deny arbitration. CCP § 1281.2(c) applies only if a party to the arbitration agreement is also involved in pending litigation with a third party arising from the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact.

Here, Golden Star does not identify any common issue whose separate resolution creates a possibility of conflicting rulings. Nor does Golden Star distinguish the obligations arising under the owner-contractor Agreement from the rights and duties arising from J & Q's separate relationship with the parties. The bare assertion that the claims are "intertwined" does not establish the statutory predicates.

Even if the Court finds CCP § 1281.2(c) applicable, denial of arbitration is only one of four statutory alternatives. The Court may order arbitration among the parties who agreed to arbitrate and stay the pending action or affected claims. (CCP § 1281.2.) That

disposition gives effect to the parties' written agreement while avoiding any identified risk of inconsistent adjudications.

CRC rule 3.1330 is satisfied:

Golden Star's reliance on California Rules of Court, rule 3.1330 does not resolve the formation question in its favor. The rule requires the arbitration provisions to be stated verbatim or a copy of the agreement to be attached and incorporated by reference. The moving papers quoted section 6.2 of the executed A101, which contains Golden Star's express arbitration selection, and attached the signed A101 itself. The moving papers also placed before the Court the A201-2017 provisions expressly identified in section 6.2. Rule 3.1330 does not require each incorporated Contract Document to be separately executed or physically attached to the signature document.

Here, the dispositive arbitration selection appears verbatim in section 6.2 of the executed A101: "[a]rbitration pursuant to Section 15.4 of AIA Document A201-2017." Rule 3.1330 provides no basis to disregard that written selection.

Cross-Defendant Jay Alan Su's Joinder to Defendant/Cross-Defendant Project X Developer Inc.'s Motion to Stay Proceedings and Compel Arbitration GRANTED.

The Court stays the pending action, to include Cross-Defendant J&Q Land Development Construction, Inc., to avoid inconsistent adjudication.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2502853	J & Q LAND DEVELOPMENT CONSTRUCTION, INC. VS PROJECT X DEVELOPER, INC.	HEARING ON MOTION TO COMPEL ARBITRATION

Tentative Ruling: Upon the petition/motion of a party to an agreement to arbitrate, the court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The petition/motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC 3.1330; see also *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-19.)

"In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability . . . Parties may submit declarations when factual issues are tendered with a motion to compel arbitration." (*Engineers & Architects Assn. v. Community Development Dept.* (1994) 30 Cal.App.4th 644, 653.) In the summary proceedings on a motion to compel arbitration, "the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

It is undisputed that Golden Star executed the AIA A101-2017 Standard Form of Agreement ("A101"). Nor does Golden Star dispute that section 6.2 of the signed A101 expressly selects "[a]rbitration pursuant to Section 15.4 of AIA Document A201-2017" as the method of binding dispute resolution. Golden Star nevertheless contends that no agreement to arbitrate exists because a separate copy of the A201-2017 General Conditions ("A201") was not attached to the execution package. However, that contention cannot be reconciled with the executed A101.

Golden Star's argument conflates the parties' agreement to arbitrate with the procedures governing the arbitration they selected. The agreement to arbitrate does not appear solely in an unattached A201. Golden Star selected arbitration in the signed A101 itself. Section 6.2 presents three alternatives for binding dispute resolution: arbitration, litigation, or another specified procedure. The parties selected "[a]rbitration pursuant to Section 15.4 of AIA Document A201-2017." They did not select litigation. (Su Deel., Ex. A, A101, § 6.2.)

The A101 separately incorporates the A201 through several clear and unequivocal provisions. The first page states that the A201 "is adopted in this document by reference." Article 1 provides that the Contract Documents form the parties' integrated agreement and are "as fully a part of the Contract as if attached to this Agreement or repeated herein." Article 9 separately enumerates "AIA Document A201™-2017, General Conditions of the Contract for Construction" as one of the documents comprising the Agreement. (Su Deel., Ex. A, A101, Art. 1, § 9.1.3.) The A101 identifies the incorporated document by publisher, document number, edition, and title. For arbitration, it also identifies the exact governing section.

As Project X explains, California law does not require an incorporated arbitration provision to be physically attached to the signed agreement. In *Wolschlag v. Fidelity National Title Insurance Co.* (2003) 14 111 Cal.App.4th 784, 790-791, the Court of Appeal enforced an arbitration clause contained in an incorporated title policy even though the insured had not seen either the policy or the arbitration provision before accepting the preliminary report. The court held that the insured's failure to read the incorporated policy did not defeat assent where the incorporating document sufficiently identified it. (Id.) Although the preliminary report in *Wolschlag* stated that copies of the incorporated policy forms were available from the issuing office, the executed A101 presents a more direct manifestation of assent to arbitration. It presents arbitration and litigation as alternatives and records the parties' affirmative selection of arbitration.

Golden State relies on *Brockman v. Kaiser Foundation Hospitals* (2025) 114 CalApp.5th 569, but the case is not on point. There, the enrollment materials referred generally to arbitration provisions contained in separate plan documents, and the defendants did not establish the precise provision to which the plaintiff or her mother had assented. (Id. at p. 585.) The executed A101 is materially different. Section 6.2 expressly selects arbitration, identifies the incorporated document as AIA Document A201-2017, and specifies section 15.4 as the governing provision. Article 9 then enumerates that same A201-2017 as a Contract Document. *Brockman* therefore does not govern the materially different agreement and record presented here.

Here, the executed A101 does not merely incorporate a document that happens to contain an arbitration clause. It expressly identifies arbitration as the selected method of binding dispute resolution, identifies the governing A201 provision by section number, and leaves the litigation alternative unchecked. Matthew Arfa's declaration addresses whether Golden Star received or reviewed a separate copy of the A201. It does not

dispute that Golden Star executed the A101, that section 6.2 expressly selects arbitration, or that Article 9 enumerates the A201 among the Contract Documents. Those objective manifestations of assent control the formation inquiry.

Finally, Golden Star emphasizes that section 8.1 refers to A201 provisions "as amended or supplemented by other provisions of the Contract Documents." That language does not show that section 15.4 was modified. It recognizes only that another Contract Document may amend or supplement an incorporated A201 provision. Golden Star identifies no provision modifying section 14 15, offers no competing version of the A201, and does not contend that the parties selected litigation or another method of binding dispute resolution. The theoretical possibility of an unidentified amendment does not overcome the express arbitration selection recorded in section 6.2.

According, the existence of an agreement to arbitrate is established.

The causes of action fall within the arbitration agreement:

The A201 defines a "Claim" to include disputes between the Owner and Contractor "arising out of or relating to the Contract." (Clough Decl., Ex. A, A201, § 15 .1.1.) It further provides that causes of action arising out of or relating to the Contract, "whether in contract, tort, breach of warranty or otherwise," must proceed under the binding-dispute-resolution method selected in the A101. (Id., § 15.1.2.)

Here, Golden Star's Cross-Complaint falls within that language. Its claims concern alleged promises regarding project completion, the 180-day construction period, progress payments, subcontracting, allegedly defective work, payment of subcontractors and vendors, lien exposure, and responsibility for resulting losses. Those claims cannot be adjudicated without determining the parties' respective rights and obligations under the Contract Documents. Golden Star may not avoid arbitration by assuming tort or statutory labels to a contract-centered controversy. The scope inquiry turns on the substance of the controversy, not the labels assigned to the causes of action. Each claim depends on alleged duties, payments, performance obligations, and project consequences arising from the Contract Documents.

As noted by Project X, Golden Star's Penal Code section 496 claim is equally subject to arbitration. It rests on the same progress payments and alleged failure to use or distribute those payments in accordance with the construction contract. The California Supreme Court has held that section 496(c) may apply in a business dispute when the statutory elements are established. (*Siry Investment, L.P. v. Farkhondehpour* (2022) 13 Cal.5th 333, 361-362.) Whether Golden Star can prove those elements is a merits question. It does not alter the contractual source or factual basis of the controversy. (CCP § § 1281.2 (arbitration may not be refused because the petitioner's contentions lack substantive merit).

Defendant/Cross-Complainant Golden Star Investment Properties, LLC's Evidentiary Objections: OVERRULED.

Defendant/Cross-Defendant Project X Developer, Inc.'s Evidentiary Objections SUSTAINED.

Defendant/Cross-Defendant Project X Developer Inc.'s Motion to Stay Proceedings and Compel Arbitration GRANTED.

The Court stays the pending action, to include Cross-Defendant J&Q Land Development Construction, Inc., to avoid inconsistent adjudication.

The hearing on Cross-Defendant Jay Alan Su's Demurrer to Cross-Complaint of Golden Star Investment Properties, LLC is VACATED due to the pending arbitration.

A status hearing re arbitration is scheduled for 3.23.27, 8:30 a.m. Parties are directed to submit a joint declaration no later than 10 days prior to the status hearing date.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2502853	J & Q LAND DEVELOPMENT CONSTRUCTION, INC. VS PROJECT X DEVELOPER, INC.	DEMURRER ON CROSS- COMPLAINT OF GOLDEN STAR INVESTMENT PROPERTIES, LLC

Tentative Ruling: Motion is vacated based on the court's ruling on the Motion to Compel Arbitration. Moving party may refile within 10 days of the case returning back to active status if necessary.